

Legal Tips for High-Risk Protesters: A Quick-Start Guide to Your Rights

From Sidewalks to Sit-Ins: A Legal Readiness Guide for Direct Action

From The American Pamphleteer's War Room Series

Field-tested tools for organized resistance



You Have Rights—But You Must Know Them to Use Them

Before you step into the street, sit down in an office, or walk out of your job, you need to know what the law actually protects—and where it draws the line. The First Amendment guarantees—on paper—your right to protest, but that doesn't mean the state won't try to shut you down. Knowing your rights isn't just about avoiding arrest—it's about defending your power.

•**First Amendment Protections:** You have the right to peacefully protest in public spaces

such as streets, sidewalks, and parks.¹

- **Permits Are Not Always Required:** Small gatherings, marches on sidewalks, and spontaneous protests typically don't need a permit unless amplified sound or street closures are involved.¹

What to Bring to a High-Risk Action

- ID (optional—bring at your own discretion)
- Water, snacks, cash
- Phone (with emergency contacts written down and location sharing off)
- Backup battery
- Protective gear: goggles, face covering, gloves, long sleeves
- Antacid-and-water mix for tear gas (NOT milk)
- Know your rights card (see: National Lawyers Guild)

If the Police Engage You

- **Stay calm** and keep your hands visible.
- **You have the right to remain silent.** Say, "I am exercising my right to remain silent. I want a lawyer."
- **Do not consent** to searches of yourself or your belongings.
- **Ask if you are free to go.** If yes, walk away. If not, ask, "Am I being detained or arrested?"
- Document badge numbers and behavior when safe.

"ANYTHING YOU SAY CAN BE USED AGAINST YOU. YOU DO NOT HAVE TO ANSWER QUESTIONS." —ACLU

Arrests, Detention & What to Expect

Getting arrested during a protest can be chaotic and frightening, but knowing what to expect can help you stay calm and make smart decisions. Here's what to anticipate and how to protect yourself:

- **Initial Detention:** Police may zip-tie your hands and transport you to a holding facility before any charges are filed. You may be held in a vehicle or cell for several hours.
- **Phone Calls:** You are entitled to at least one phone call in most jurisdictions. Use it wisely—call a legal support hotline, jail support, or a trusted contact who knows your situation. Memorize the number in advance or write it on your arm in waterproof sharpie. You may not have access to your belongings.
- **Do Not Incriminate Yourself or Others:** Anything you say, even over the phone, may be recorded or used against you or others. Do not discuss details about the protest, actions taken, or fellow protesters. Really, just try not to talk at all.
- **Bail and Release:** Some jurisdictions will release you with a citation, while others may require bail or impose fines. Local mutual aid or bail funds often assist with covering these costs—look up relevant resources before the protest.
- **Documentation:** Try to remember and record details of the arrest—badge numbers, time, location, officer behavior—as soon as you are able. This information may help you or others contest unlawful arrests or file complaints.

Surveillance & Digital Privacy

The safest option? Leave your phone and digital devices at home. If you're arrested, detained, or your device is confiscated, anything on it could be used against you—or others. Phones are powerful tracking tools, and once they're in state hands, your privacy is gone.

But if you must bring a phone, take precautions. Assume law enforcement is monitoring digital activity before, during, and after the event. Taking a few steps ahead of time can help protect your privacy—and that of everyone around you.. Taking a few steps ahead of time can help protect your privacy—and that of everyone around you.

- **Use full-device encryption.** Modern phones often come with encryption built in, but it's only effective if your device is locked with a passcode. Encryption helps protect everything on your phone—messages, photos, contacts—if it's lost, stolen, or seized by police. Make sure your phone is using full-disk encryption and that you're using a strong passcode to lock it.
- **Turn off biometric unlocking.** Disable face ID and fingerprint scanning so you can't be forced to unlock your device without consent.
- **Use airplane mode when not in active use.** This limits location tracking and reduces signal transmissions.
- **Cover your face.** Masks and sunglasses protect both your identity and your health. They make facial recognition harder, too.
- **Avoid driving.** Automated license plate readers can track your movement. Walking or biking reduces your digital footprint.
- **Be careful with media.** Don't post unedited photos or video of other protesters. Blur faces and remove identifiable features. Skip the livestream. If you see someone filming, turn away or shield your face to avoid being recorded. Always assume that footage taken at a protest could end up in police hands.
- **Strip metadata from your files.** Before posting images, remove embedded data that reveals when, where, and how a photo was taken. You can use your phone's settings or a free tool to do this—[here's a guide for how to remove metadata from photos on your device](#).³
- **Back up important data.** Don't rely on keeping your phone—store copies of your contacts, notes, and media somewhere secure.

***“YOU CAN BE TRACKED BY YOUR PHONE, YOUR FACE, YOUR POSTS, AND YOUR CAR.
PLAN ACCORDINGLY.” —ACLU-DC***

Special Risks

- **Immigrants (documented or not):** Do NOT bring any documents identifying your immigration status. Talk to immigration counsel before attending.
- **Trans/Nonbinary Protesters:** Consider carrying a copy of your legal name change documentation or ID that matches your appearance.⁵
- **Disabled Protesters:** Know your accessibility rights and communicate your needs to protest organizers.
- **Workers on Strike:** Know whether your strike is protected under the NLRA or other labor laws. Document retaliation.

Legal Help: Who to Call

- **National Lawyers Guild:** (nlg.org) – Legal observers, Know Your Rights materials, and jail support
- **ACLU:** (aclu.org) – Free legal resources and attorneys in many states
- **Lambda Legal:** (lambdalegal.org) – Focus on LGBTQ+ protester support
- **LawHelp.org** – Local legal aid by state and county
- Your city's Protest Legal Hotline (look it up before you go)

Bonus: Legal Observer Tips

Legal observers play a crucial role in protecting the rights of protesters by documenting police behavior and ensuring accountability. They are not participants in the protest—they're legal witnesses. Here's how to do it effectively:

- **Wear clearly marked identifiers.** Use something like a green hat, vest, or badge that identifies you as a legal observer.
- **Remain impartial and non-participant.** Do not chant, hold signs, or engage in protest activities. Your role is to observe and record, not to participate.

- **Take detailed notes.** Write down badge numbers, the time and place of events, any use of force, detentions, or arrests. Use shorthand if necessary but aim for clarity.
- **Record safely and legally.** Use your phone or camera to document incidents, but do not interfere with police or put yourself in danger.
- **Protect your data.** Store notes and footage securely. Use encrypted devices if available, and consider backing up files offsite or uploading to a secure cloud platform immediately.
- **Debrief after the action.** Share your documentation with legal teams or rights organizations supporting protesters, but do not post sensitive footage online without consent.

National Lawyers Guild (NLG):

The NLG is the primary organization that trains and deploys legal observers in the U.S.⁴

➤ [Legal Observer Program Overview](#)

➤ To request a training or become an observer, contact your **local NLG chapter** (linked on their site).

Downloadable Resources:

- ACLU: "Know Your Rights: Protesters"
- NLG: "Legal Observer Manual"
- ACLU-DC: "How to Defend Against Police Surveillance"
- NLG: [Responsive Guides](#)

This guide is not legal advice and does not substitute for counsel. It is meant as a preparatory resource for activists taking part in high-risk protest activities. Stay safe. Stay smart. Stay strong.

Endnotes & Source Links

1. ACLU. *Know Your Rights: Protesters' Rights*. https://www.aclu.org/sites/default/files/field_pdf_file/kyr_protests.pdf
2. ACLU-DC. *How to Defend Against Police Surveillance at Protests*. <https://www.acludc.org/how-defend-against-police-surveillance-protests/>
3. Comparitech. *How to Remove Metadata from Photos*. <https://www.comparitech.com/blog/information-security/remove-metadata-from-photos/>
4. National Lawyers Guild. *Legal Observer Manual*.
5. Lambda Legal. *Protesting Safely for LGBTQ+ Individuals*.
6. LawHelp.org. *Find Legal Aid Near You*.

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